COMPREHENSIVE CONSTRUCTION SERVICES v TAL

25CV48174

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

This matter involves a contract dispute between Comprehensive Construction Services ("Plaintiff") and Ladybug Ventures ("Ladybug.") Now before the Court is Plaintiff's post-trial motion for attorney's fees and costs. The motion is unopposed.

I. BACKGROUND

On October 10, 2024, Plaintiff filed this action against Johnathon Tal ("Tal") alleging causes of action for breach of oral contract, goods sold and delivered, account stated and open account. (During trial, Ladybug was substituted for Tal by stipulation.)

The matter was tried by the Court on November 5, 2025, with a resulting judgment signed on November 24, 2025. On Plaintiff's complaint, the Court found that Plaintiff was entitled to $17,791.61 from Ladybug on its causes of action for breach of oral contract, for goods sold and delivered, and for open account. The judgment also stated that Plaintiff "is the prevailing party in this matter" and that Plaintiff could seek attorney's fees pursuant to motion.

II. LEGAL STANDARD

Pursuant to Civil Code section 1717(a):

> In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

The statute awards attorney's fees to the prevailing party "whenever that party would have been liable under the contract for attorney fees had the other party prevailed." (*Hsu v. Abbara* (1995) 9 Cal.4th 863, 871.)

III. DISCUSSION

Pursuant to Article 4, Paragraph 10 of the contract between the parties:

> In the event of any dispute arising from any aspect of the performance of this agreement by any party hereto, if any action is required to be taken, either judicial or extrajudicial, to enforce any provision of this agreement, the party shall be entitled to an award of reasonable attorney fees and costs.
>
> (Declaration of William J. Braun ("Braun Decl.") ¶ 4, Ex. A.)

Thus, the contract provides for an award of attorney's fees to the party prevailing on an action to enforce the contract, falling squarely within Civil Code section 1717 and the Court has already determined that Plaintiff is the prevailing party.

Plaintiff seeks $17,791.61 in attorney's fees and costs. Plaintiff's attorney states that his usual rate is $450 per hour, but accepts the Court's expression that the usual maximum hourly rate in this legal community is $300.00. (Braun Decl. ¶ 6.)

Plaintiff's counsel avers that his firm uses a computerized billing system which shows that through the end of October 2025, counsel expended 23.5 hours of attorney time. (*Id*. ¶ 7, Ex. B.) Plaintiff's counsel avers that there are an additional 17.1 hours of work which have not yet been billed for the month of November 2025, which includes trial preparation, trial, preparing the instant motion and hearing on the motion. (*Id*. ¶ 8.) Thus, Plaintiff seeks compensation for 41 hours of work. Plaintiff argues that the amount of work was necessitated in large part by the fact that Tal/Ladybug– despite agreeing that Plaintiff was owed money – required engaging in excess legal work. (*Id.* ¶ 3.) Ladybug cannot, therefore, be surprised that Plaintiff incurred substantial legal fees. (*Ketchum v.* Moses (2001) 24 Cal.4th 1122, 1141 [a party that litigates tenaciously cannot be surprised that the other side incurred attorney's fees in response].)

The Court finds that 41 hours of legal work in this matter is reasonable. Accordingly, the **Court awards $12,300.00 in attorney's fees and costs to Plaintiff**.[2]

[2] The Court removes the anticipated hours for responding to the opposition, as no opposition was filed.

Defendant is to pay $12,300.00 to Plaintiff within fifteen (15) days of this Order.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

KNIGHT v BOGAARD, et al

24CV47322

DEFENDANT'S COUNSEL'S MOTION TO BE RELIEVED

This matter arises from allegations of fraud brought by Penny Knight ("Plaintiff") against Byron Bogaard ("Bogaard"), Nathan Tremble ("Tremble") and MaxKing Holdings, LLC ("LLC") (collectively "Defendants.")

Now before the Court is a motion to be relieved as counsel filed by attorney David S. Kahn ("Kahn") of the law firm of Gavrilov & Brooks ("Gavrilov.") Khan seeks to withdraw as counsel for Defendants.

Bogaard and Tremble do not oppose the motion as to themselves. However, they oppose the motion to withdraw as to the LLC on the grounds that the LLC cannot represent itself pro per and will be prejudiced if Kahn is allowed to immediately withdraw.

I. BACKGROUND

Plaintiff filed her complaint against Defendants on April 16, 2024. On May 29, 2024, Defendants filed their answers and a cross-complaint against Plaintiff. Those documents reflect that Defendants were, at the time, represented by Gavrilov, and the documents signed by an attorney named Kalle Mikkola.

According to Defendants, their assigned attorney at Gavrilov departed without providing them with any notice. Defendants assert that as a result of this departure, they were left without adequate representation by Gavrilov which resulted in the foreclosure of real property which was purportedly LLC's sole material asset. This foreclosure happened in April of 2025.

At some point Kahn became the attorney primarily in charge of this matter. A settlement conference was held on November 3, 2025. The parties did not reach a settlement and the matter was set for trial on March 4, 2026.

The instant motion to withdraw was filed on November 24, 2025. The declaration accompanying the motion states that it is based upon a "fundamental disagreement"